

STATE OF NEW YORK

7611--A

Cal. No. 1549

2025-2026 Regular Sessions

IN SENATE

April 23, 2025

Introduced by Sen. BYNOE -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged and said bill committed to the Committee on Rules -- ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the vehicle and traffic law and the transportation law, in relation to a study of the availability of wheelchair accessible vehicles in New York state outside of the city of New York

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative intent. This Legislature finds that no uniform
2 regulations exist across New York state outside of New York city which
3 define wheelchair accessible vehicles. Despite the need for mobility
4 services for the disabled population, substantive information on wheel-
5 chair accessible vehicle standards and the number of such vehicles
6 available does not exist in each county across New York state outside of
7 New York City.

8 As such, this Legislature finds that defining a wheelchair accessible
9 vehicle, conducting a study on the number of wheelchair accessible vehi-
10 cles, creating benchmarks and granting support for counties across New
11 York state other than New York City, would allow for local authorities
12 to make informed policies to increase mobility transportation options
13 for individuals who are reliant on the use of a wheelchair accessible
14 vehicle.

15 § 2. The vehicle and traffic law is amended by adding a new section
16 159-b to read as follows:

17 § 159-b. "Wheelchair accessible vehicle". A vehicle, including a taxi-
18 cab, that has been inspected and approved by the municipal or local
19 authorizing body as possessing all of the following requirements:

20 1. Mobility and accessibility

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (a) The lift/ramp width shall be thirty inches minimum.

2 (b) The design load of the lift/ramp shall be at least six hundred
3 pounds.

4 (c) Controls for the lift/ramp shall be interlocked with the vehicle
5 to ensure that the vehicle cannot be moved while the lift/ramp is in
6 operation.

7 (d) Controls for the lift/ramp shall be of the momentary contact type
8 requiring continuous manual pressure to operate.

9 (e) The lift/ramp shall be equipped with an emergency deployment meth-
10 od in the event of power or mechanical failure.

11 (f) The installation of a lift/ramp shall include provisions to
12 prevent the lift/ramp from falling or folding any faster than twelve
13 inches/second in the event of any failure of the load-carrying compo-
14 nent.

15 (g) The lift/ramp platform shall be equipped with handrails on two
16 sides, a minimum of eight inches long and thirty inches above the plat-
17 form and move in tandem with the lift/ramp.

18 (h) The lift/ramp platform shall have barriers at least two inches or
19 higher to prevent mobility aid wheels from slipping off.

20 (i) Lift/platform surfaces shall be continuous and slip resistant and
21 accommodate four-wheel and three-wheel mobility aids.

22 (j) The transition from roadway or sidewalk and the transition from
23 vehicle floor to the ramp may be vertical without edge treatment up to
24 one-quarter inch.

25 (k) Ramps shall have the least slope practical and may not exceed a
26 one to four ratio when deployed to ground level.

27 (l) The lift/ramp attachment shall be firmly attached to the vehicle
28 so that it is not subject to displacement when loading or unloading a
29 heavy mobility aid and the gap between the vehicle and ramp may not
30 exceed five-eighths of an inch.

31 (m) The lift/ramp shall be usable in all weather conditions.

32 2. Doors, steps and thresholds

33 (a) For vehicles twenty-two feet in length or less, the overhead
34 clearance between the top of the door opening. The raised lift platform
35 or highest point of the ramp shall be a minimum of fifty-nine inches.

36 (b) Vehicle doorways in which a lift/ramp is installed shall have a
37 light above or beside each passenger access door to illuminate the load-
38 ing equipment. Such light shall be constantly lit during the loading or
39 unloading of passengers. The light shall be shielded to protect the eyes
40 of entering and exiting passengers.

41 3. Interior compartment

42 (a) Floor areas where people walk and securement locations shall have
43 slip-resistant surfaces.

44 (b) A minimum clear floor area of thirty inches by forty-eight inches
45 shall be provided for each wheelchair position.

46 (c) Regarding seating configuration, vehicles twenty-two feet in
47 length or less shall provide forward/rear seating only.

48 (d) Ramp stowage shall be accomplished in a manner as not to pose a
49 hazard to passengers or impinge on a passenger's mobility aid.

50 (e) Interior handrails and stanchions shall permit sufficient turning
51 and maneuvering space for mobility aids including wheelchairs to reach
52 securement location from lift/ramp.

53 (f) Handrails and stanchions shall be provided in the entrance to the
54 vehicle in a configuration which allows people to grasp the assists from
55 outside the vehicle while starting to board, and to continue using the
56 assists throughout the boarding process.

1 4. Secure systems

2 (a) A vehicle shall possess a wheelchair securement system that is
3 able to securely anchor the wheelchair into the vehicle, or able to
4 encompass both the occupant and the wheelchair to ensure they are
5 securely anchored into the vehicle.

6 (b) For each mobility aid securement device, a passenger seat belt and
7 shoulder harness shall be provided for use by mobility aid users. Such
8 seat belts shall be in addition to a device which secures the mobility
9 aid itself.

10 (c) Securement systems shall be stowed in a way so as not to pose a
11 hazard to passengers when not in use.

12 § 3. The transportation law is amended by adding a new section 14-o to
13 read as follows:

14 § 14-o. Wheelchair accessible vehicles. 1. For the purposes of this
15 section:

16 (a) "Taxicab" shall mean any motor vehicle, other than a bus, used in
17 the business of transporting passengers for compensation, and operated
18 in such business under a license or permit issued by a local authority.
19 Such term shall not include vehicles which are rented or leased without
20 a driver.

21 (b) "County" shall mean a county in the state of New York, outside of
22 the city of New York.

23 (c) "Wheelchair accessible vehicles" shall have the same meaning as
24 defined in section one hundred fifty-nine-b of the vehicle and traffic
25 law.

26 2. The commissioner shall conduct a study relating to the availability
27 of wheelchair accessible vehicles in every county. Each county shall
28 provide the department with relevant data which will allow the depart-
29 ment to complete this study. The scope of such study shall include:

30 (a) A compilation of data from each county on the number of taxicab
31 operators within their jurisdiction.

32 (b) The size of the fleet of each taxicab company or operator.

33 (c) The number of wheelchair accessible vehicles that comprise the
34 fleet of each taxicab company or operator.

35 (d) The catchment areas of each taxicab company or operator.

36 (e) Any existing county policies or laws which set guidelines on the
37 number of wheelchair accessible vehicles available in each county or
38 policies regarding the licensing of wheelchair accessible vehicles by
39 any taxicab company.

40 3. All information compiled by the wheelchair accessible vehicle study
41 under subdivision two of this section shall be assembled and integrated
42 into a statewide mapping platform in order to identify areas of the
43 state which may have an accessibility desert and/or insufficient number
44 of wheelchair accessible vehicles. Such map shall include:

45 (a) An overlay of the different existing county policies or laws which
46 set guidelines on the number of wheelchair accessible vehicles.

47 (b) An overlay of existing programs which provide wheelchair accessi-
48 ble transportation services in each county.

49 (c) All other information as outlined under the wheelchair accessible
50 vehicle study in subdivision two of this section.

51 (d) All information included in the study shall be made available
52 digitally and be accessible to the public on the department's website.

53 4. Upon completion of the wheelchair accessible vehicle study pursuant
54 to subdivision two of this section, the department, in conjunction with
55 the office for people with developmental disabilities and the department
56 of health, shall complete an assessment of each county's data to deter-

1 mine if there is an accessibility desert due to an insufficient number
2 of wheelchair accessible vehicles, and create benchmarks developed
3 through analysis of U.S. Census Bureau's American Community Survey data
4 on the prevalence of ambulatory disabilities. This assessment shall
5 suggest grant programs or tax incentives to increase the number of
6 wheelchair accessible vehicles.

7 5. The department shall complete an assessment of all existing wheel-
8 chair accessible vehicle policies or plans and determine if such plans
9 are insufficient. Upon determination that a county has an insufficient
10 plan or is absent of a plan to meet the needs of its constituency, the
11 department shall require such county to submit a plan that meets the
12 department's benchmarks in order to increase wheelchair accessible vehi-
13 cle transportation.

14 6. Within one hundred eighty days of the publication of the wheelchair
15 accessible vehicle study map as set forth in subdivision three of this
16 section, the commissioner shall deliver a copy of the findings of the
17 study and the benchmarks established pursuant to subdivision four of
18 this section to all stakeholders and post such findings on the depart-
19 ment's website. Notification shall be provided to each county subject to
20 this section. Within one hundred eighty days of the publication of the
21 wheelchair accessible vehicle study map, each county shall create and
22 submit a plan to the department pursuant to subdivision five of this
23 section.

24 § 4. The closing paragraph of section 151 of the transportation law,
25 as amended by section 8 of part G of chapter 58 of the laws of 2012, is
26 amended and a new subdivision 13 is added to read as follows:

27 13. As a taxi or livery service, except as specified for wheelchair
28 accessible vehicles pursuant to section fourteen-o of this chapter,
29 which is pursuant to the jurisdiction or regulatory control of a munici-
30 pality, other than a city with a population over one million, authorized
31 to adopt an ordinance relating to both registration and licensing pursu-
32 ant to subdivision one of section one hundred eighty-one of the general
33 municipal law, when such service is available to the general public on a
34 prearranged or demand-response basis over a non-specified or irregular
35 route with the point or points of pick-up and discharge determined by
36 the passenger. For the purpose of this subdivision, wheelchair accessi-
37 ble vehicles shall be defined pursuant to section one hundred fifty-
38 nine-b of the vehicle and traffic law.

39 For the purposes of this article, the term "sedan" or "sedans" as used
40 ~~herein~~ in this section shall include private passenger automobiles,
41 but shall not include commercial motor vehicles with a seating capacity
42 of eleven persons or more including the driver, or commercially operated
43 wheelchair accessible vehicles pursuant to subdivision thirteen of this
44 section.

45 § 5. This act shall take effect on the ninetieth day after it shall
46 have become a law.